

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

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IAN FORTUNE,

Plaintiff,

-against-

SUMMONS

POLICE OFFICER EDWIN ESPINAL, Shield No. 20689,
POLICE OFFICER ERICK FLORES, POLICE OFFICER
ELVIS MERIZALDE, LIEUTENANT NICHOLAS
FIORE, POLICE OFFICER MYLES MCKENNA,
SERGEANT SULMAN ZAHEER, DETECTIVE
SPENCER,

Index No.: 24172/2014E

The Basis of Venue is:
Location of Incident

Plaintiff designates Kings
County as the place of trial.

Defendants.

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To the above named Defendants:

You are hereby summoned to answer the complaint in this action, and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

DATED: New York, New York
February 27, 2017

Yours, etc.

/s/

JACOBS & HAZAN, LLP.
STUART E. JACOBS, ESQ.
Attorney for Plaintiff
11 Park Place, 10th Floor
New York, New York 10007
(212) 577-2690

TO: POLICE OFFICER EDWIN ESPINAL, Shield No. 20689, 72nd Det. Squad Bklyn South
POLICE OFFICER ERICK FLORES, 72nd Det. Squad Bklyn South
POLICE OFFICER ELVIS MERIZALDE, 72nd Det. Squad Bklyn South
LIEUTENANT NICHOLAS FIORE, 72nd Det. Squad Bklyn South
POLICE OFFICER MYLES MCKENNA, 72nd Precinct
SERGEANT SULMAN ZAHEER, 72nd Precinct
DETECTIVE SPENCER, 72nd Precinct Detective Squad

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

----- X
IAN FORTUNE,

Plaintiff,

INDEX NO.:

VERIFIED COMPLAINT

-against-

POLICE OFFICER EDWIN ESPINAL, Shield No. 20689,
POLICE OFFICER ERICK FLORES, POLICE OFFICER
ELVIS MERIZALDE, LIEUTENANT NICHOLAS
FIORE, POLICE OFFICER MYLES MCKENNA,
SERGEANT SULMAN ZAHEER, DETECTIVE
SPENCER,

JURY TRIAL DEMANDED

Defendants.
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Plaintiff IAN FORTUNE, by his attorneys, Jacobs & Hazan, LLP, as and for his Verified Complaint herein, alleges upon information and belief as follows:

PRELIMINARY STATEMENT

1. This is a civil rights action to recover money damages arising out of defendants' violation of plaintiff's rights as secured by the Civil Rights Act, 42 U.S.C. Sections 1983 and 1988, and of rights secured by the First, Fourth, Fifth and Fourteenth Amendments to the United States Constitution, and the common law and the laws of the State of New York. On February 27, 2014 at approximately 1:00 p.m. plaintiff Ian Fortune was lawfully present at 830 4th Avenue, Brooklyn, New York 11232, when he was falsely arrested, falsely imprisoned, unlawfully searched by the defendant New York City police officers. Thereafter, plaintiff was maliciously prosecuted and denied due process and the right to fair trial by the defendant police officers. Further, the defendant police officers subjected plaintiff to abuse of process. Plaintiff was arraigned on February 28, 2014 at approximately at 6:30 pm, charged with crimes he did not commit and for which the defendant officers lacked probable cause to accuse him of committing. Plaintiff was remanded into New York City Department of Correction custody where he was unlawfully detained from February 28, 2014 through March 7, 2014 at 7:00 pm when he was released on his own recognizance. Plaintiff was required to make numerous appearances in Criminal Court until all charges brought against plaintiff were dismissed and sealed on June 30, 2015 after the Kings County District Attorney's Office affirmatively moved to dismiss the charges because it lacked evidence to prove plaintiff committed the crimes for which he was charged. Plaintiff was deprived of his constitutional and common law rights when the individual defendants unlawfully searched, confined, falsely arrested, maliciously prosecuted, abused process, denied plaintiff the right to a fair trial, and denied plaintiff the right to due process in

violation of the Fourth, Fifth and Fourteenth Amendments to the United States Constitution, the common law and the laws of the State of New York.

PARTIES

2. Plaintiff Ian Fortune is a resident of the state of New York.

3. Defendant POLICE OFFICER EDWIN ESPINAL, Shield No. 20689, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

4. Defendant POLICE OFFICER EDWIN ESPINAL, Shield No. 20689, is and was at all times relevant herein, an officer, employee, and agent of the New York, is and was at all times relevant herein, assigned to the 72nd Precinct Detective Squad.

5. Defendant POLICE OFFICER EDWIN ESPINAL, Shield No. 20689, is and was at all times relevant herein, an officer, employee, and agent of the New York is being sued in his individual and official capacity.

6. Defendant POLICE OFFICER ERICK FLORES, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

7. Defendant POLICE OFFICER ERICK FLORES, is and was at all times relevant herein, assigned to the 72nd Precinct Detective Squad.

8. Defendant POLICE OFFICER ERICK FLORES is being sued in his individual and official capacity.

9. Defendant POLICE OFFICER ELVIS MERIZALDE, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

10. Defendant POLICE OFFICER ELVIS MERIZALDE, is and was at all times relevant herein, assigned to the 72nd Precinct Detective Squad.

11. Defendant POLICE OFFICER ELVIS MERIZALDE is being sued in his individual and official capacity.

12. Defendant DETECTIVE SPENCER is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

13. Defendant DETECTIVE SPENCER is and was at all times relevant herein, assigned to the 72nd Precinct Detective Squad.

14. Defendant DETECTIVE SPENCER is being sued in his individual and official capacity.

15. Defendant LIEUTENANT NICHOLAS FIORE is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

16. Defendant LIEUTENANT NICHOLAS FIORE is and was at all times relevant herein, assigned to the 72nd Precinct Detective Squad.

17. Defendant LIEUTENANT NICHOLAS FIORE is being sued in his individual and official capacity.

18. Defendant POLICE OFFICER MYLES MCKENNA is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

19. Defendant POLICE OFFICER MYLES MCKENNA is and was at all times relevant herein, assigned to the 72nd Precinct.

20. Defendant POLICE OFFICER MYLES MCKENNA is being sued in his individual and official capacity.

21. Defendant SERGEANT SULMAN ZAHEER is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

22. Defendant SERGEANT SULMAN ZAHEER is and was at all times relevant herein, assigned to the 72nd Precinct.

23. Defendant SERGEANT SULMAN ZAHEER is being sued in his individual and official capacity.

24. At all times relevant herein, the individual defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees and officers of the New York City Police Department, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the New York City Police Department at all times relevant herein, with the power and authority vested in them as officers, agents and employees of the New York City Police Department and incidental to the lawful pursuit of their duties as officers, employees and agents of the New York City Police Department.

25. The City of New York is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department, which acts as its agent in the area of law enforcement and for which it is ultimately responsible. The defendant City of New York assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the public consumers of the services provided by the New York City Police Department.

26. This action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving intentional actions, as well as the defendant, and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

27. Plaintiff has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

STATEMENT OF FACTS

28. By way of background, on August 4, 2013 defendants POLICE OFFICER EDWIN ESPINAL, Shield No. 20689, POLICE OFFICER ERICK FLORES, and POLICE OFFICER ELVIS MERIZALDE apprehended plaintiff Ian Fortune for a crime he did not commit and for which he was acquitted.

29. Plaintiff Ian Fortune filed complaints against defendants Espinal, Flores, and Merizalde with the Internal Affairs Bureau of the New York City Police Department and the Civilian Complaint Review Board, stemming from the officers' conduct related to the August 4, 2013 arrest.

30. Thereafter, a laundromat located at 473 57th Street, Brooklyn, New York was burglarized on October 23, 2013 and several items were stolen from the store.

31. The burglary was assigned to Police Officer Edwin Espinal to investigate.

32. An evidence collection team responded to the location but did not recover any fingerprints or DNA.

33. Defendant Officer Edwin Espinal did not have any leads regarding the perpetrators of the burglary as of November 6, 2013.

34. Defendant Officer Edwin Espinal felt pressure to arrest perpetrators of the burglary and to close his investigation.

35. During the investigation Defendant Officer Edwin Espinal recovered a low resolution surveillance video recording of two individuals committing the burglary, but the video was extremely grainy and the perpetrators' faces on the video could not be seen clearly.

36. Since defendant Officer Edwin Espinal had no leads regarding the perpetrators of the burglary, he decided to target a female who previously committed several crimes within the 72nd Precinct and plaintiff Ian Fortune, in retaliation for the complaints he made with CCRB and IAB against him and defendants Flores and Merizalde.

37. Defendant Officer Edwin Espinal claimed that he recognized the female in the surveillance video as an individual that he previously arrested, and on November 7, 2013 he arrested the female and charged her with burglary.

38. Additionally, defendants interrogated the female while she was in their custody and coerced her to falsely accuse plaintiff of committing the burglary with her.

39. Thereafter, defendants fabricated evidence to further link plaintiff to the Laundromat burglary. Specifically, on November 9, 2013 defendant Police Officer Erick Flores reviewed the surveillance video footage of the Laundromat with Police Officer Edwin Espinal and defendant Police Officer Erick Flores falsely alleged under the penalty of perjury that he recognized the person committing the burglary in the surveillance video to be plaintiff Ian Fortune, an individual that defendant Flores claimed to recognize from the prior arrest on August 4, 2013.

40. However, defendant Officer Erick Flores falsified the allegation that he recognized the person in the surveillance video to be plaintiff Ian Fortune, as the poor resolution in the surveillance video combined with the fact that the perpetrator's face on the surveillance video cannot be seen clearly makes it impossible to positively identify the person in the video as plaintiff.

41. Defendants all knew that defendant Officer Erick Flores falsified the claim that he recognized the person in the surveillance video to be plaintiff and that the female arrested and charged with the burglary was coerced to falsely accuse plaintiff of committing the burglary with her, but not of the defendants intervened to prevent plaintiff from being falsely arrested, maliciously prosecuted, and denied the right to due process.

42. On February 27, 2014 at approximately 1:00 p.m. plaintiff Ian Fortune was lawfully present at 830 4th Avenue, Brooklyn, New York 11232, when he was falsely arrested, falsely imprisoned, unlawfully searched by the defendant New York City police officers, without probable cause or legal justification to believe he committed a crime.

43. At no time prior to arresting plaintiff did the defendant police officers have an objective factual basis to believe plaintiff had committed a crime.

44. At no time did plaintiff commit a crime, nor did the defendant police officers have an objective factual basis to believe he committed a crime.

45. At no time was plaintiff in possession of any drugs, weapons, or contraband of any kind on February 27, 2014, nor did the defendant police officers have an objective reason to believe plaintiff was involved in the burglary of the Laundromat located at 473 57th Street, Brooklyn, New York, on October 23, 2013.

46. Nevertheless, the defendant police officers unlawfully handcuffed plaintiff and falsely arrested him without legal justification or probable cause.

47. Plaintiff was unlawfully searched, fingerprinted, and photographed at the 72nd Precinct, and unlawfully detained in a holding cell for many hours.

48. The defendant police officers purposely provided the King's County District Attorney's Office with false, misleading and incomplete evidence about the facts that allegedly formed the basis for their arrest and prosecution of plaintiff.

49. Importantly, the collateral objective the defendants had for ensuring plaintiff was prosecuted without probable cause and for crimes he did not commit was to retaliate against plaintiff for filing complaints with IAB and CCRB about the defendants arrest of plaintiff in August 2013, and defendant Officer Espinal had an additional collateral objective in that by arresting plaintiff he would receive credit for arresting the perpetrators of the burglary and could close his investigation into the burglary, a major case investigation.

50. Based upon the false, misleading, and incomplete information provided to the District Attorney's Office by the defendant police officers and sworn to by the defendants in the criminal court complaint, defendants initiated a prosecution against plaintiff on February 28, 2014, and legal process against plaintiff was commenced when plaintiff was arraigned in Red Hook Community Court on 2/28/2014 at 6:35 pm where he was falsely charged with several serious crimes he did not commit.

51. On February 28, 2014, plaintiff was transported from the 72nd precinct to the Red Hook Community Court..

52. On February 28, 2014 at 6:35 pm, after approximately 29 hours in police custody, plaintiff was arraigned in Red Hook Community Court, falsely charged with several crimes the defendant officers lacked probable cause to allege he committed, and bail was set at \$15,000.

53. Plaintiff could not post bail at arraignment and he was remanded into New York City Department of Correction custody. Plaintiff was detained on Riker's Island in the OBCC facility until March 7, 2014 when he was released from custody on his own recognizance.

54. Thereafter, plaintiff was required to appear in Court on numerous occasions and endure criminal prosecution for over a year before all criminal charges brought against plaintiff were dismissed and sealed and terminated in his favor on June 30, 2015 after the Kings County District Attorney's office affirmatively moved to dismiss the charges brought against plaintiff because it lacked evidence to prove the allegations against plaintiff beyond a reasonable doubt and because the the DA's Office concluded that it was impossible to identify plaintiff as the individual in the surveillance video of the burglary because the video footage had poor resolution and did not clearly show the face of the individual in the video.

55. Some of the police officer defendants observed the violation of plaintiff's rights under the Constitution of the United States and New York State Law and did nothing to prevent the unjustifiable search, false arrest, false imprisonment, malicious prosecution, abuse of process, and denial of due process/fair trial.

56. The unlawful search, false arrest, false imprisonment, malicious prosecution, abuse of process, denial of due process and a fair trial against plaintiff by the individually named defendants caused plaintiff to sustain physical, psychological and emotional trauma.

FIRST CAUSE OF ACTION

Violation of Plaintiff's Fourth Amendment, Fifth Amendment, and Fourteenth Amendment Rights

57. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 56 with the same force and effect as if more fully set forth at length herein.

58. The individually named police officer defendants while acting in concert and within the scope of their authority, caused plaintiff to be unlawfully seized, unlawfully searched, falsely arrested, falsely imprisoned, maliciously prosecuted, subjected to abuse of process and denied the right to a fair trial without probable cause in violation of plaintiff's right to be free of an unreasonable seizure and denial of due process under the Fourth and Fifth Amendment of the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

SECOND CAUSE OF ACTION

False Arrest and False Imprisonment

59. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 58 with the same force and effect as if more fully set forth at length herein.

60. The acts and conduct of the defendants constitute false arrest and false imprisonment under the laws of the State of New York. Defendants intended to confine plaintiff and, in fact, confined plaintiff, and plaintiff was conscious of the confinement. In addition, plaintiff did not consent to the confinement and the confinement was not otherwise privileged.

61. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York and the United States Constitution.

62. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

63. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to physical, economic, emotional and psychological injuries.

THIRD CAUSE OF ACTION

Unlawful Search

64. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 63 with the same force and effect as if more fully set forth at length herein.

65. The illegal approach, pursuit, stop and search inside plaintiff's pockets, inside of the waistband of his pants and underneath his clothing employed by defendants herein terminated plaintiff's freedom of movement through means intentionally applied.

66. Defendants lacked probable cause to search plaintiff.

67. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York.

68. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

69. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

FOURTH CAUSE OF ACTION

Malicious Prosecution

70. Plaintiff repeats and realleges paragraphs 1 through 69 as if fully set forth herein.

71. The acts and conduct of the defendants constitute malicious prosecution under the laws of the United States Constitution, State of New York and New York State common law.

72. Defendants commenced and continued a criminal proceeding against plaintiff.

73. There was actual malice and an absence of probable cause for the criminal proceeding against plaintiff and for each of the charges for which he was prosecuted.

74. The prosecution and criminal proceedings terminated in plaintiff's favor on the aforementioned date.

75. Plaintiff was subjected to a post-arraignment deprivation of liberty sufficient to implicate plaintiff's Fourth Amendment rights.

76. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

FIFTH CAUSE OF ACTION

Denial of Right to Fair Trial

77. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs numbered 1 through 76 with the same force and effect as if fully set forth herein.

78. Defendants, individually and collectively, manufactured and/or withheld false evidence and forwarded this false evidence to prosecutors in the Kings County District Attorney's Office.

79. Defendants filled out false and misleading police reports and forwarded them to prosecutors in the King's County District Attorney's Office.

80. Defendants signed false and misleading criminal court affidavits and forwarded them to prosecutors in the King's County District Attorney's Office.

81. In withholding/creating false evidence against plaintiff Ian Fortune, and in providing/withholding information with respect thereto, defendants violated plaintiff's constitutional right to a fair trial under the New York State Constitution and under the Due Process Clause of the Fifth and Fourteenth Amendments of the United States Constitution.

82. As a result of the foregoing, plaintiff Bernard Miller, sustained, inter alia, loss of liberty, emotional distress, embarrassment and humiliation, lost earnings and deprivation of his constitutional rights.

83. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

SIXTH CAUSE OF ACTION

Malicious Abuse of Process

84. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs 1 through 83 with the same force and effect as if fully set forth herein.

85. Defendants issued legal process to place plaintiff Ian Fortune under arrest.

86. Defendants arrested plaintiff BeIan Fortune in order to obtain a collateral objective outside the legitimate ends of the legal process.

87. Defendants acted with intent to do harm to plaintiff Ian Fortune, without excuse or justification.

88. As a result of the foregoing, plaintiff Ian Fortune sustained, inter alia, loss of liberty, emotional distress, embarrassment and humiliation, lost earnings and deprivation of his constitutional rights.

89. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

SEVENTH CAUSE OF ACTION

Failure to Intervene

90. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 89 with the same force and effect as if more fully set forth at length herein.

91. Defendants had an affirmative duty to intervene on behalf of plaintiff, whose constitutional rights were being violated in their presence by other officers.

92. Defendants failed to intervene to prevent the unlawful conduct described herein.

93. As a result of the foregoing, plaintiff's liberty was restricted for an extended period of time, he was put in fear of his safety, and he was humiliated and subject to other physical constraints.

94. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

JURY DEMAND

95. Plaintiff hereby demands trial by jury of all issues properly triable thereby.

PRAYER FOR RELIEF

WHEREFORE, plaintiff Ian Fortune demands judgment against the defendants on each cause of action in amounts to be determined upon the trial of this action which exceeds the jurisdiction of lower courts, inclusive of punitive damages and attorneys' fees inclusive of costs and disbursements of this action, interest and such other relief as is appropriate under the law. That the plaintiff recover the cost of the suit herein, including reasonable attorneys' fees pursuant to 42 U.S.C. § 1988.

Dated: New York, New York
February 27, 2017

By: /s/
STUART E. JACOBS
DAVID M. HAZAN
JACOBS & HAZAN, LLP
Attorneys for Plaintiff
11 Park Place, 10th Floor
New York, NY 10007
(212) 577-2690

ATTORNEY'S VERIFICATION

STUART E. JACOBS, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am a partner of the law firm of **JACOBS & HAZAN, LLP**, I have read the annexed **AMENDED VERIFIED COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files. The reason this verification is made by me and not Plaintiff is because plaintiff does not reside in the county wherein I maintain my office.

DATED: New York, New York
February 27, 2017

/s/

STUART E. JACOBS